Draft: Privacy Policy and consent wording for the activation step

Status: the wording the owner approved on 2026-11-03 (PROBLEMS.md §410), not live yet. `pages/privacy.html`, `consent.py` and the app change with the activation step that uses them, never before it. Nothing asks for or collects a date of birth, location or gender until then (`docs/AGENTS_BUILD_PROMPT.md`, Phase 2, the activation step; decided items 2 and 11; PROBLEMS.md §395). Delete this file once the approved wording is in `pages/privacy.html` and the app.

Not legal advice. The Terms already name the points a lawyer should confirm before launch; this draft adds to that list (the end of this file).

The owner's decisions (2026-11-03)

Answered "1A 2B 3A 4A 5A 6A 7A":

1. **An under-13 date of birth deletes the account** - after an "Is {date} right?" check - at activation or when corrected later.
2. **Counted by default**: the activation screen shows the notice, and a switch in Settings, Privacy and safety turns counting off. (The opt-in switch was the recommendation; the owner chose on-by-default.)
3. **The location is the profile's existing place**, shown on the profile as today; the app's two sentences saying it is never shown are corrected.
4. **"Self-describe" is a choice only**, with no text box.
5. **The totals are only for counting** what groups of listeners hear.
6. **The Terms are not asked again**: `TERMS_VERSION` stays 2; the activation screen shows its own notice.
7. **The wording below is approved** as drafted, with these answers in it.

What the wording has to cover

From the owner's decisions (items 2 and 11) and `consuela.md` (never 4):

- **When:** when a listener is let off the waitlist into the app; listeners already in are asked the next time they open the app.
- **Date of birth: required, 13 and over only.** An under-13 date cannot enter.
- **Location: optional**; the city is kept, and the totals use only the region.
- **Gender: optional**; man, woman, non-binary, self-describe, prefer not to say.

- **What it is for:** totals and correlations of what is searched and heard, by category, region, time, age band (13-17, 18-24, 25-34, 35-44, 45-54, 55-64, 65+) and gender, kept only for groups of **100 or more**, never a name, an account id or a row per person, never from guests or private searches.
- **Account deletion removes them** (`accounts.delete_account`).

1. Privacy Policy - the changes, section by section

Each block shows the current text and the proposed text. Anything not listed stays as it is. The page's date (`app.py`, the privacy policy's date) changes when this goes live.

The short version - one bullet added after "We keep what FAM needs to work"

> **New:** When you join, we ask your date of birth (to check you are 13 or older) and, if you want to give them, where you live and your gender. We use them only to count, in groups of at least 100 people, what kinds of listeners hear what - never to pick you out, and never sent to anyone.

What we collect - the Profile row is split in two

Current (Profile): Display name, @handle and profile picture if you set them; date of birth if you give it; the town, region or country you type in (FAM never reads your device's location). *Why:* To show your profile and to suggest stories about where you live.

Proposed (Profile): Display name, @handle and profile picture if you set them; the town, region or country you type in (FAM never reads your device's location). *Why:* To show your profile and to suggest stories about where you live.

Proposed new row (About you): Your date of birth, which we ask when you join; your gender if you choose to give it (man, woman, non-binary, your own words, or prefer not to say). Neither is ever shown to anyone. *Why:* Your date of birth checks you are 13 or older. Both are used, with your place's region, only to count what groups of listeners hear - see "Totals about groups of listeners".

New section after "What we collect": Totals about groups of listeners

> FAM keeps totals of what is searched and heard - by kind of story, region and time of day - and how those totals differ by age group (13-17, 18-24, 25-34, 35-44, 45-54, 55-64, 65 and over), gender and region. They tell us what kinds of listeners care about what.
>
> - **Only groups of 100 or more.** No total is kept for a group smaller than 100 people, so no total describes you.

- **Never about one person.** A total holds no name, no account, no city and no date of birth - only the age group and the region.
- **Never from a guest, and never from a Private search.** If you listen without an account or search with Private on, nothing you do is counted.
- **Never shared or sold.** The totals stay with FAM.

Your date of birth, gender and place stay on your account. You can change or remove your gender and place at any time in Settings, and deleting your account deletes all three.

You can turn counting off. You are counted from when you join, and you can turn it off at any time in Settings, Privacy and safety; from then on nothing you do is counted.

Who else receives it - one sentence added under the table

Your date of birth and gender are sent to none of these companies.

(True as designed: the totals are computed beside the accounts database, on FAM's own servers. The place you set is already sent to Anthropic when you tap the story about where you live - that row stays as it is.)

What other people can see - one bullet added

Your date of birth and gender are never shown to anyone. The place you set shows on your profile, as it does today.

(Decision 3: the location asked at activation is the profile's place, which other people can see; the screen asking for it says so.)

How long we keep it - two rows added

What	For how long
Your date of birth, gender and place	Until you change them or delete your account
Totals about groups of 100 or more listeners	Indefinitely; they describe groups, not you, and are reviewed at two years

When you delete your account - one sentence added

> Your date of birth, gender and place are erased with it. Totals already counted stay, because they describe groups of at least 100 people and nothing in them is yours.

Children - replaced

Current: FAM is not meant for children under 13, and we do not knowingly collect their information. If you believe a child has an account, email us and we will delete it.

Proposed: FAM is not meant for children under 13. We ask every listener's date of birth when they join, and someone under 13 cannot enter the app. If a date of birth shows a listener is under 13, we delete their account and what it holds. If you believe a child has an account, email us and we will delete it.

2. Consent - how the yes is kept

`consent.py` keeps two scopes today: `ai` (their words to Anthropic) and `terms` (the Terms and this policy, agreed with a checkbox at sign-up and again when `TERMS_VERSION` rises).

Proposed:

- **A third scope, `demographics`, version 1**, kept exactly like `ai`: the answer, its version and when, keyed on the account. **Counted by default** (decision 2): finishing the activation screen, which shows the notice, records a yes to the current version; the Settings switch records a no, and a no is kept. The aggregate job reads only accounts whose answer is yes to the current version - so an account that never saw the notice is never counted.
- **`TERMS_VERSION` is not raised.** The policy change adds what FAM asks at activation and nothing sent to a third party, and the activation screen shows the notice itself, so asking everyone to tick the terms again would add a second prompt for the same thing (decision 6).
- **The notice text** (the `demographics` scope's `NOTICE`, shown on the activation screen under the fields):

> We use your age group, gender and region only to count what groups of listeners hear, in groups of at least 100 people. You are never picked out, and none of it is shown to anyone or sent to anyone. You can turn this off in Settings. Privacy policy

3. The activation screen - in-app wording

An API before a screen ([api-before-screen]); this is the screen's text.

- **Title:** A few things before you start
- **Date of birth** (required): label `Date of birth`; help text `To check you're 13 or older. Never shown to anyone.`
- **Where you live** (optional): label `Where you live`; placeholder `Town or city`; help text `Shows on your profile, and helps FAM find stories near you. Optional.`
- **Gender** (optional): label `Gender`; choices `Man`, `Woman`, `Non-binary`, `Self-describe`, `Prefer not to say` - a choice, no text box (decision 4). Help text `Never shown to anyone. Optional.`
- **Counting** (decision 2): the notice under the fields; no switch here - the switch is in Settings.
- **Button:** `Continue` (enabled once a date of birth is entered); the two optional fields can be left empty.
- **Under 13** (decision 1): before saving, `Is {date} right?` with `Yes` / `Change it`, so a slip of the finger does not cost an account; then `FAM is for people 13 and older, so we can't let you in. We've deleted your account.`
- **Already let in:** the same screen, the next time the app opens, with any date of birth already on the account filled in. The title becomes `One more thing`.

Settings gets a row for gender beside the place's (the place already has its own screen, `screen-location`) and, under Privacy and safety, the switch `Count me in FAM's totals`, on until turned off (decision 2). The date of birth is shown but cannot be cleared (it can be corrected; a correction under 13 follows decision 1).

4. App Store

- **App Privacy labels** (App Store Connect) need updating when this ships: date of birth and gender under *Other Data Types* (or whichever category Apple's current list assigns them - check at the time), linked to the user, not used for tracking; the typed place may count as *Coarse Location* - check Apple's definition when filling it in.
- **Guideline 5.1.1** (minimum data): only the date of birth is required, for the 13-and-over gate; location and gender are optional, as the owner decided (item 11).

5. Questions for the owner

Answered on 2026-11-03 - see "The owner's decisions" at the top.

6. For the lawyer's list (beside the Terms' existing notes)

- Whether gender, joined with listening, needs more than this notice in any US state FAM launches in, or in the EU or UK - **counting is on by default with an off switch (decision 2)**, so the totals rest on legitimate interest rather than consent there; whether that holds for EU and UK listeners, or they need an opt-in.
- Whether totals with a 100-person floor count as de-identified data under the laws that apply.
- COPPA: what FAM must do when a date of birth shows a listener is under 13.